

IN THE HOUSE OF REPRESENTATIVES

HOUSE BILL NO. 851

BY WAYS AND MEANS COMMITTEE

AN ACT

RELATING TO LIBEL AND SLANDER; AMENDING SECTION 6-712, IDAHO CODE, TO PROVIDE FOR PUNITIVE DAMAGES IN CASES OF LIBEL PER SE AND SLANDER PER SE, TO DEFINE A TERM, AND TO MAKE A TECHNICAL CORRECTION; AND DECLARING AN EMERGENCY AND PROVIDING AN EFFECTIVE DATE.

Be It Enacted by the Legislature of the State of Idaho:

SECTION 1. That Section 6-712, Idaho Code, be, and the same is hereby amended to read as follows:

6-712. RETRACTION BY NEWSPAPER, RADIO OR TELEVISION BROADCASTING STATION OR NETWORK OF STATIONS -- LIMIT OF RECOVERY. (1) ~~In~~ Except as provided in subsection (2) of this section, in any action for damages for the publication of a libel, in a newspaper, or of a slander or libel by radio or television broadcast, plaintiff shall recover no more than actual damages unless a correction be demanded and be not published or broadcast, as hereinafter provided. Plaintiff shall serve upon the publisher, at the place of publication or broadcaster at the place of broadcast, a written notice specifying the statements and the manner in which said statements are claimed to be slanderous or libelous and demanding that the same be corrected. Said notice and demand must be served within twenty (20) days after knowledge of the publication or broadcast of the statement claimed to be slanderous or libelous. If a correction be demanded within said period and be not published or broadcast in substantially as conspicuous a manner in said newspaper or on said radio or television broadcasting station as were the statements claimed to be slanderous or libelous, in a regular issue thereof published or broadcast within three (3) weeks after such service, plaintiff, if he proves such notice, demand and failure to correct, and if his cause of action be maintained, may recover general, actual and exemplary damages; provided that no exemplary damages may be recovered unless the plaintiff shall prove that defendant made the publication or broadcast with actual malice, and actual malice shall not be inferred or presumed from the publication or broadcast. A correction published or broadcast in substantially as conspicuous a manner in said newspaper or on said broadcasting station as the statements claimed in the complaint to be defamatory, prior to receipt of a demand therefor, shall be of the same force and effect as though such correction has been published or broadcast within three (3) weeks after a demand therefor.

(2) In any action for damages for the publication of a libel in a newspaper or of a slander or libel by a radio or television broadcast that constitutes libel per se or slander per se, a plaintiff may recover punitive damages regardless of whether a retraction has been published or broadcast. As used in this section, "libel per se or slander per se" means a malicious defamation, as described in section 18-4801, Idaho Code, that is knowingly

1 and deliberately false, or in reckless disregard of the truth, without re-
2 gard to context.

3 SECTION 2. An emergency existing therefor, which emergency is hereby
4 declared to exist, this act shall be in full force and effect on and after
5 July 1, 2026.